HH 253-26
HCH 5786/25

EX TEMPORE

NICKSON MLAMBO
versus
ONE THOUSAND CONSTRUCTION [PRIVATE] LIMITED
and
MESSENGER OF COURT
and
UNICAST INVESTMENTS [PRIVATE] LIMITED

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 17 and 18 March 2026

Opposed application

T Mupamhadzi for the Applicant
B.M Machanzi for the 3rd Respondent

DEME J: The Applicant approached this court seeking the substitution of the 3rd Defendant in case number HCH1588/21. The 3rd Defendant was improperly cited in case number HCH1588/21. More particularly, the Applicant prayed for the following relief:

1. "The Application for substitution of a party is hereby granted.
2. The 3rd Respondent (Unicast Investment (Private) Limited) be and is hereby substituted as the 3rd Defendant in HCH 1588/21.
3. There shall be no order as to costs."

On the day of hearing, Ms Machanzi sought the postponement of the matter to enable her to file heads of argument. I drew her attention to the provisions of Rule 39(4) of the High Court Rules which provides that:

"(4) While a bar is in operation—

(a) the registrar shall not accept for filing any pleading or other document from the party barred; and

(b) the party barred shall not be permitted to appear personally or by legal practitioner in any subsequent proceedings in the action or suit;

except for purposes of applying for the removal of the bar."

Upon realizing that she enjoys restricted audience while a bar is in force, Ms Machanzi applied for the upliftment of the bar which arose as a result of her failure to file heads of argument. The Applicant filed, through his legal practitioners, heads of argument on 9 December 2025. It was submitted by Ms Machanzi that she has been on maternity leave at the material time. She further advised the court that she only came back from maternity leave to manage the situation before the end of her maternity leave. She further submitted that she only discovered, on the day of hearing, that the heads of argument have not been filed. She also claimed that the alternative legal practitioner who was assigned the matter is not feeling well due to a leg strain. Ms Machanzi additionally maintained that the heads of argument have been prepared and may be filed on the day of hearing of this matter i.e. 17 March 2026. She submitted that the Applicant will not be prejudiced by a delay for the hearing of the matter as the status *quo* will be maintained pending the filing of the heads of argument. Ms Machanzi submitted that the 3rd Respondent will bear the costs occasioned as a result of the delay.

The application for upliftment of the bar was opposed by the Applicant. Mr. Mupamhadzi submitted that there is no reasonable cause advanced by the 3rd Respondent justifying the upliftment of the bar. He contended that the 3rd Respondent and the Applicant were advised to file heads of argument by the Registrar's letter dated 3 December 2025. On this basis, Mr. Mupamhadzi argued that the 3rd Respondent ought to have been aware from 3 December 2025 that there was need to file heads of argument. Mr. Mupamhadzi additionally argued that the 3rd Respondent had three months notice to file heads of argument. On this basis, he claimed that even though the 3rd Respondent's counsel was on maternity leave, they ought to have filed heads of argument within three months.

Mr. Mupamhadzi also submitted that the notice of set down was generated on 2 February 2026 which ought to have reminded the 3rd Respondent of the need to file heads of argument. He further maintained that there is no evidence that the alternative legal practitioner is not feeling well in the absence of the communication posted onto the electronic platform. He submitted that

the Applicant will suffer incurable prejudice by the delay in the finalization of the main matter in case number HCH1588/21. Mr. Mupamhadzi finally urged the court to dismiss the application and treat the present application as an unopposed matter.

The sole issue that arises for determination is whether the present application meets the basic requirements of application for upliftment of the bar.

Our jurisdiction has widely defined the basic foundation for the application of upliftment of the bar. Reference is made to the case of Matsvimbo Sibanda v Stevenson and Others[1] where Guvava JA held that:

> "It was not in dispute that eighth respondent having failed to file heads of argument timeously, was automatically barred. For the bar operating against the eighth respondent to be uplifted it had to seek condonation for late filing of the heads of argument from the Court.
>
> It is trite that in an application of this nature an applicant must show good and sufficient cause excusing him from non-compliance of the rules by considering cumulatively, the extent of the delay, the explanation for that delay and the strength of the applicant's case on appeal, or the prospects of its success. See *Bonnyview Estates Ltd v Zimbabwe Platinum Mines (Private) Limited & Anor* SC 58/18 at p 3)."

In the case of Bonneyview *Estates (Pvt) Ltd vs Zimbabwe Platinum Mines (Pvt) Ltd and Anor*[2] Makarau JA, as she then was, remarked as follows:

> "Condonation is an indulgence granted when the court is satisfied that there is good and sufficient cause for condoning the non- compliance with the Rules and good and sufficient cause is established by considering cumulatively, the extent of the delay, the explanation for that delay, and the strength of the applicant's case on appeal, or the prospects of its success."

The 3rd Respondent's counsel submitted that she was on maternity leave at the material time. No evidence was placed before the court to substantiate this allegation. Further, it was alleged that the alternative legal practitioner was not feeling well. Again, no evidence was tendered before the court to substantiate this allegation.

It is apparent that on 3 December 2025, all parties were advised of the need to file heads of argument to bring the matter to finality. There was no reason advanced on behalf of the 3rd Respondent why heads of argument could not be filed at the earliest available opportunity having

[1] SC123/20.

[2] SC 58/18 at p 3 of the cyclostyled judgment,

been advised to do so by 3 December 2025. The explanation for the 3rd Respondent's failure to file heads of argument is unreasonable in light of unsubstantiated allegations. Litigants must be reminded to treat the court business with a high degree of seriousness. A serious legal practitioner cannot come to court and allege that he or she discovered that heads of argument were not part of the record on the day of hearing.

Further, a period of three months, in my view, is a very long time for the 3rd Respondent to fail to file heads of argument. Such a period is inordinate in the absence of a satisfactory explanation. Parties, on 3 December 2025, were directed to file heads of argument. The 3rd Respondent chose to ignore this directive at its peril. The primary intention of the directive was to facilitate the expeditious resolution of the present application which is an interlocutory application.

The Applicant filed heads of argument on 9 December 2025. The 3rd Respondent ought to have filed its heads of argument within the time lines prescribed by the rules upon receiving Applicant's heads of argument. I do not believe that the 3rd Respondent failed to discover that the Applicant filed heads of argument by 9 December 2025 as the electronic platform generates notifications for new developments that occur in the case.

It is common cause that the notice of set down in this matter was generated on 2 February 2026. This was more than a month before the hearing of this matter. The 3rd Respondent received notification of the notice of set down. This ought to have reminded the 3rd Respondent's legal practitioners of the need to file heads of argument although they were now out of time.

In my view, the 3rd Respondent's failure to take action having been reminded on three occasions must not be ignored. This lackadaisical approach by the 3rd Respondent must be followed with the appropriate consequences. In my view, by ignoring notifications on three occasions, the 3rd Respondent demonstrated that it is not prioritizing the matter before the court.

Ms Machanzi, through her oral submissions did not touch on the prospects of success for the 3rd Respondent's defence to the present application. On this basis, the 3rd Respondent failed to address this critical factor for the application of upliftment of the bar. In the absence of this crucial requirement, I am unable to find merit in the application for upliftment of the bar. It is my

considered opinion that the 3rd Respondent has failed to establish a good and sufficient cause as outlined in the case of Matsvimbo Sibanda v Stevenson and Others *supra*.

In the circumstances, the application for upliftment of the bar is hereby dismissed. The matter must be regarded as an unopposed matter. Accordingly, it is ordered as follows:

A. The oral application for the upliftment of the bar be and is hereby dismissed.
B. Default judgment be and is hereby entered against the 3rd Respondent for its failure to file heads of argument within the time lines prescribed by the rules.
C. The present application be and is hereby deemed to be unopposed.
D. The Application for substitution of a party is hereby granted.
E. The 3rd Respondent (Unicast Investment (Private) Limited) be and is hereby substituted as the 3rd Defendant in HCH 1588/21.
F. There shall be no order as to costs.

DEME J …….....

Matsikidze Attorneys -At-Law Applicant's Legal Practitioners.
Maruwa Machanzi Attorneys 3rd Respondent's Legal Practitioners